

FEDERAL MARITIME COMMISSION

USL AUTO EXPORTING INC.,

COMPLAINANT,

v.

Docket No. 23-13

EASY SHIPPING CORPORATION,

RESPONDENT.

MOTION TO RECOVER PREJUDGMENT INTEREST

Complainant, USL Auto Exporting Inc. ("Complainant"), by and through its undersigned counsel, respectfully submits this Motion to Recover Prejudgment Interest, pursuant to the Commission's Order for Supplemental Information dated December 12, 2024, and in accordance with applicable law, including 46 U.S.C. § 41305(a) and 46 C.F.R. § 502.253. In support thereof, Complainant states as follows:

I. BACKGROUND

1. Complainant filed the initial complaint in this matter to address violations of the Shipping Act of 1984 by Respondent, which resulted in financial harm to Complainant.
2. As detailed in Complainant's responses to the Commission's Order for Supplemental Information, the total damages suffered by Complainant include prejudgment interest, calculated in accordance with statutory and regulatory requirements.

II. CLAIM FOR PREJUDGMENT INTEREST

3. Complainant is entitled to prejudgment interest under 46 U.S.C. § 41305(a). The purpose of prejudgment interest is to compensate for the time value of money lost due to Respondent's violations.

4. Using the statutory cap rate of 6% annually, the prejudgment interest on Complainant's damages has been calculated as follows:
 - **Period of Interest Accrual:** From the date of loss (May 1, 2023) to the date of judgment (assume December 1, 2024), a total of 19 months or approximately 1.583 years.
 - **Interest Calculation:** $\$52,710.00 \times 6\% \times 1.583 = \$5,006.40$.
5. Therefore, the total amount of damages sought, including prejudgment interest, is \$57,716.40.
6. The Federal Maritime Commission has awarded prejudgment interest in similar cases, including *Color Brands, LLC v. AAF Logistics, Inc.*, FMC Docket No. 1967(I), Initial Decision (Dec. 15, 2020). In that case, the Commission awarded prejudgment interest to the complainant, calculated based on the average interest rate applicable during the period of damage, in accordance with 46 C.F.R. § 502.253.

III. CONCLUSION

7. Based on the foregoing, Complainant respectfully requests that the Commission:
 - a. Award Complainant \$5,006.40 in prejudgment interest, calculated at the statutory cap rate of 6% annually; and
 - b. Grant such other and further relief as the Commission deems just and proper.

DATED: January 3, 2025

Respectfully submitted,
Anis Houssein
USL AUTO EXPORTING INC.,
By: /s/ ANIS HOUSSEIN
ANIS HOUSSEIN
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Tel.: (862) 338-0889
Vice President for COMPLAINANT
USL AUTO EXPORTING INC.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on the 3rd day of January 2025, a true and correct copy of the foregoing Motion For Summary Judgment was served via electronic mail on:

EASY SHIPPING CORPORATION
(frafati@rafatilegal.com)

Anis Houssein

Anis Houssein

Vice President for COMPLAINANT
USL AUTO EXPORTING INC.,